

ship to the trustees until there were owners competent to deal with the whole estate (a).

9. **Power "during the continuance of the trust."**—But if a power be given to trustees to be exercised "during the continuance of the trust," it cannot be exercised after the time when the trust *ought* to have been completed, though, from the delay of the trustees it happens that the trust has not in fact been executed (b).

10. **Powers cease when settlement is at an end.**—And though the power be not confined expressly to the continuance of the trust, yet the power is gone when the objects of the trust have been fully exhausted, but not before (c).

[But the mere fact of the beneficial interest in the property having become vested in persons, all of whom are *sui juris*, will not put an end to the power, if, on the construction of the instrument creating the power, the intention appears that it should still be exercisable, and the power in its creation was not obnoxious to the rule against perpetuities (d).

Within what time power must be exercised.—If a power of sale be given in general terms, the question arises, within what limit of time it must be exercised. This will depend on the nature of the limitations contained in the will or settlement; for when, by reason of the expiration or cesser of the limitations, the absolute interests come into existence, the power is considered to be at an end. And as, for the settlement to be valid, the limitations must become [*606] absolute within the period allowed by the rule* against perpetuities, a power which is to continue in existence until the interests are absolute will also be valid. If the settlement contains in the first instance absolute limitations of interest, a power of sale given for the purpose of

(a) *Trower v. Knightley*, 6 Mad. 134; and see *Taite v. Swinstead*, 26 Beav. 525.

(b) *Wood v. White*, 2 Keen, 664. It was determined on appeal that the trusts in this case were still in being, 4 M. & Cr. 460.

(c) *Wolley v. Jenkins*, 23 Beav. 53; *Mortlock v. Buller*, 10 Ves. 315; *Wheate v. Hall*, 17 Ves. 86; *Lantsbery v. Collier*, 2 K. & J. 709.

[(d) *Re Cotton's Trustees and the School Board for London*, 19 Ch. D. 624.]